

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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NYSIKAH WILSON,

SUMMONS

Plaintiff, Index No.:

-against-

The Basis of Venue is:
Location of Incident

THE CITY OF NEW YORK, NYPD OFFICER JUSTIN
SENESE, Shield No. 21242, and NYPD POLICE
OFFICERS JOHN/JANE DOE NUMBERS 1-10,

Plaintiff designates New York
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
December 15, 2021

Yours, etc.

Cary London

Cary London, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
NYPD OFFICER JUSTIN SENESE, Shield No. 21424, 25th Precinct, 120 E 119th St,
New York, NY 10035

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

NYSIKAH WILSON,

INDEX NO.:

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD OFFICER JUSTIN
SENESE, Shield No. 21242, and NYPD POLICE
OFFICERS JOHN/JANE DOE NUMBERS 1-10,

JURY TRIAL DEMANDED

Defendants.

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Plaintiff NYSIKAH WILSON, by her attorneys, Shulman and Hill, PLLC, as and for her Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On October 15, 2020, at approximately 12:45 a.m., plaintiff Nysikah Wilson, while lawfully in the vicinity of the intersection of East 132 Street and Park Avenue, County of New York, State of New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. In addition, Plaintiff suffered serious physical injury to her right leg and knee, as well as mental and emotional injury. Plaintiff was unlawfully imprisoned the 25th Police Precinct and at Central Bookings for approximately 48 hours before she was released. Plaintiff was deprived of her State and Federal constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested and falsely imprisoned him in violation of the Fourth, Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Nysikah Wilson is a resident of the state of New York.

3. NYPD OFFICER JUSTIN SENESE, Shield No. 21242, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

4. NYPD OFFICER JUSTIN SENESE, Shield No. 21242, is being sued in his individual and official capacities.

5. NYPD OFFICER JUSTIN SENESE, Shield No. 21242, was at all times relevant herein assigned to the 25th Police Precinct.

6. NYPD OFFICER JUSTIN SENESE, Shield No. 21242 is currently assigned to the 25th Precinct.

7. NYPD POLICE OFFICERS JOHN/JANE DOE NUMBERS 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

8. NYPD POLICE OFFICERS JOHN/JANE DOE NUMBERS 1-10 are being sued in their individual and official capacities.

9. NYPD POLICE OFFICERS JOHN/JANE DOE NUMBERS 1-10 were at all times relevant herein, assigned to the 25th Precinct.

10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

12. Plaintiff in furtherance of her causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

13. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on September 3, 2021.

14. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

15. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

16. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

17. On October 15, 2020, at approximately 12:45 A.M., Plaintiff was lawfully at or around the intersection of East 132 Street and Park Avenue, County of New York, State of New York, when defendant police officers unlawfully stopped, questioned, searched, and falsely arrested Plaintiff without probable cause or legal justification.

18. On October 15, 2020, Plaintiff left her house to walk to Lexington Avenue and buy some fried chicken to eat.

19. While walking, Plaintiff saw three (3) NYPD police officers, including defendant officers, beating a man who was laying on the ground.

20. Plaintiff spoke up and said that the defendant officers should just arrest the man if they were going to, but that there was no cause to hit him.

21. One of the defendant officers told Plaintiff to mind her business.

22. Plaintiff began to walk away when defendant officer lunged at her.

23. The defendant officer then grabbed Plaintiff and threw her onto a nearby parked car.

24. In throwing Plaintiff onto the parked car, defendant officer hit Plaintiff's right knee with his own body, exacerbating a pre-existing injury.

25. Plaintiff was then handcuffed and patted down before being taken in a marked police cruiser to the 25th Precinct, where she was searched again, and placed into a holding cell.

26. Plaintiff spent approximately 24 hours at the precinct before being taken to New York County Central Bookings.

27. At New York County Central Bookings, Plaintiff was again searched, and was also photographed, fingerprinted and had her retinas scanned.

28. At no point while in custody did Plaintiff receive any medical treatment for her injured knee.

29. While Plaintiff was in custody, the defendant police officers provided the New York County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff committed a crime.

30. Specifically, the defendant police officers falsely stated to the New York County District Attorney's Office that Plaintiff was engaged in Assault in the Second Degree, to wit, that she had slapped two defendant officers in the face.

31. At 6:10AM on October 15, 2020, Defendant police officer Senese signed a complaint alleging falsely that the Plaintiff had committed a crime and filed or had filed on his behalf same false complaint in the criminal matter against Plaintiff.

32. Plaintiff remained at Central Bookings for approximately 24 hours before being arraigned and released on her own recognizance.

33. At no time did Plaintiff slap or otherwise touch any police officer.

34. After her release, Plaintiff sought medical treatment for her injured knee.

35. Plaintiff learned that the damage to her knee required surgical intervention.

36. Plaintiff had surgery on her knee at the New York Surgery Center in Astoria, Queens, on January 8 of 2021.

37. On January 14, 2021, the criminal case against Plaintiff was dismissed and sealed.

38. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

39. At no point did Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

40. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause, unlawfully fingerprinted, photographed and searched, and unlawfully detained.

41. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, using excessive force, falsely

arresting and imprisoning, humiliating, and denying Plaintiff the right to due process and a fair trial.

42. The unlawful search, seizure, false arrest and imprisonment, and denial of Plaintiff's right to a fair trial by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION
Unlawful Stop, Question, and Search

43. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

44. The illegal approach, pursuit, stop, questioning, and search employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

45. The conduct of defendants in stopping, frisking, and searching Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

46. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

47. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

48. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SECOND CAUSE OF ACTION
Violation of Fourth and Fourteenth Amendment Rights:
Unlawful Seizure and Deprivation of Liberty

49. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

50. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

51. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

False Imprisonment

52. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

53. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

54. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York and the United States Constitution.

55. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

56. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

57. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

58. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

59. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

60. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

66. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

67. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

68. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

69. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

70. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein

71. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

72. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Failure to Intervene

73. Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

74. The defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

75. Defendants failed to intervene to prevent the unlawful conduct described herein.

76. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, she was put in fear of her safety, and she was humiliated and subject to unlawful search and other physical constraints.

77. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

80. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Violation of Fourth And Fourteenth Amendment Rights:

Denial of Right to Fair Trial/Due Process

81. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

82. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

83. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

84. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

85. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

86. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of her constitutional rights.

87. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

88. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

89. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: economic, emotional and psychological injuries.

EIGHTH CAUSE OF ACTION
Deliberate Indifference to Medical Needs

90. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

91. Defendants despite being aware that Plaintiff was suffering pain and injury to her right knee that required additional treatment from medical professionals, delayed Plaintiff's medical treatment and refused to administer and properly procure immediate and adequate medical attention.

92. The delay in medical treatment to Plaintiff's injuries resulted in the increased severity in the knee injuries that were suffered by Plaintiff that would have been prevented if Plaintiff received treatment in a timely manner.

93. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

94. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

95. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

96. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION
Negligence

97. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

98. Defendants owed a duty of care to Plaintiff.

99. To the extent defendants claim that the injuries to Plaintiff by the defendant police officers was unintentionally caused and that the force used by the defendants against his

was unintentional, then the defendants breached that duty of care by slamming Plaintiff into a parked car and injuring her right knee.

100. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

101. All of the foregoing occurred without any fault or provocation by Plaintiff.

102. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

103. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

104. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Assault

110. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

111. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, that such acts caused apprehension of such contact in the Plaintiff.

112. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

113. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

114. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

115. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TWELFTH CAUSE OF ACTION

Battery

116. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

117. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner grabbing and threw Plaintiff into a vehicle and slamming Plaintiff's right knee brutally effecting an arrest of Plaintiff without her consent and, with the intention of causing harmful and/or offensive bodily contact to the Plaintiff, caused such battery.

118. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

119. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

120. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

121. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

122. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff NYSIKAH WILSON demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

DATED: New York, New York
December 15, 2021

Yours, etc.

Cary London

Cary London, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff

1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
NYPD OFFICER JUSTIN SENESE, Shield No. 21424, 25th Precinct, 120 E 119th St,
New York, NY 10035

ATTORNEY'S VERIFICATION

CARY LONDON, an attorney duly admitted to practice before the Courts of the

State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **SHULMAN AND HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
December 15, 2021

Cary London
CARY LONDON